

Amendment No. 1 to SB0436

Bailey
Signature of Sponsor

AMEND Senate Bill No. 436*

House Bill No. 1198

by deleting all language after the caption and substituting:

WHEREAS, the legislature finds that increasing access to biosimilar medicines has the potential to significantly reduce prescription drug costs; and

WHEREAS, biosimilar medicines are approved according to the same federal Food and Drug Administration (FDA) standards of pharmaceutical quality, safety, and efficacy as the FDA's reference medicines; and

WHEREAS, it is the intent of the legislature to eliminate barriers impeding access to biosimilar medicines and the savings biosimilar medicines can provide; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 4-3-1013(e), is amended by adding the language "or biosimilars, as that term is defined in § 56-7-3501" at the end of the subsection.

SECTION 2. Tennessee Code Annotated, Section 56-7-3501, is amended by adding the following as a new subdivision:

() "Biosimilar" means a biological product that is licensed under 42 U.S.C. § 262(k) and that is not listed as "discontinued" in the federal food and drug administration's database of licensed biological products, also known as the "Purple Book";

SECTION 3. Tennessee Code Annotated, Section 56-7-3502(f)(1), is amended by deleting the subdivision and substituting:

(1) A health carrier, health benefit plan, or utilization review organization from requiring a patient to try an AB-rated generic equivalent product, interchangeable biological product, or biosimilar product prior to providing coverage for the equivalent branded prescription drug;

SECTION 4. Tennessee Code Annotated, Section 71-5-103, is amended by adding the following as a new subdivision:

() "Biosimilar" means a biological product that is licensed under 42 U.S.C. § 262(k) and that is not listed as "discontinued" in the federal food and drug administration's database of licensed biological products, also known as the "Purple Book";

SECTION 5. Tennessee Code Annotated, Section 71-5-198(c), is amended by adding the language "or biosimilars" at the end of the subsection.

SECTION 6. Tennessee Code Annotated, Section 71-5-2404(a), is amended by deleting the language "including, but not limited to, efficacy, the use of generic drugs and therapeutic equivalent drugs, and cost information related to each drug" and substituting "including efficacy; the use of generic drugs, biosimilars, as that term is defined in § 71-5-103, and therapeutic equivalent drugs; and cost information related to each drug".

SECTION 7. This act takes effect upon becoming a law, the public welfare requiring it.